6

THE ACCUSED

I wonder if I knew before the trial that literature could bring clarity. It was during that period that I read Solzhenitsyn's *The First Circlee*, and it was more than clarifying and more than revealing: it made me understand the meaning of empathy and it gave me strength. I had been a reader since childhood so I certainly knew about the pleasure of books, but this one, this book, made me see into the heart of my predicament. If a book can make you feel less lonely, then this was the one for me and it came just in time. I suppose I've always forced feeling to give way to action – that was the kind of practical, campaigning childhood I had – but in those years when I was waiting for the court case I'm sure I was close to feeling lost. Where there is lostness, there are sometimes the seeds of new strength. Professor Chelnov, in the novel, is an old mathematician imprisoned seventeen years earlier. When filling in a form and asked for his nationality he puts not 'Russian', but 'Prisoner'. His mind is set upon inventions and he feels he is nothing if not stateless. And that is a kind of empowerment when the state is against you.

The struggle is always to be oneself.

The Federal Police took sixty-three bundles of my belongings away from the house in the Melbourne suburbs. I stood in the street and watched them go. It was dark, a warm October night, the crickets were out, and I felt I was whirling down a chasm.

In the event, it took them until 1994 to come up with some charges. It's worth remembering, as more than an aside, the extent to which the sudden infusion of computers into society had created a legislative and common law vacuum. State prosecutors tried to apply traditional property protection and deception laws to new technological crimes, and often they succeeded. Yet there were a number of high-profile cases where the prosecution of hackers was a farce, cases where the only real crime revealed was the crime of the computer geek having embarrassed someone powerful. In an